

24STCV05681 24STCV05681

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Case Number: 24STCV05681 Hearing Date: August 25, 2026 Dept: 510

No.

11 - Jesus Alonzo Valencia, et al. v. Eliora Arille Shy, et al.

Defendant Barry Shy's Demurrer to

Plaintiffs' Second Amended Complaint

Defendant

Barry Shy demurs to Plaintiffs' second amended complaint ("SAC") that brings seven causes of action for Labor Code violations and one unfair competition law violation claim.

Evidentiary

Objections

Plaintiffs make 4 objections to the evidence submitted by Defendant. All objections are sustained.

Relation

Back

Plaintiffs

initiated this action against Defendant Eliora Shy on March 6, 2024. Plaintiffs allege that they worked for Defendant Eliora Shy up until March and April 2022. During their employment, Plaintiffs allege Defendant committed various Labor Code violations, all of which have a one- to three-year statute of limitations period. On October 20, 2025, Plaintiffs added Barry Shy as a Defendant to their operative second amended complaint. Here, Defendant Barry Shy argues that Plaintiffs' causes of action against him are time-barred because the

relation-back doctrine does not apply.

“The

fictitious name statute (Code Civ.Proc., § 474) enables a plaintiff who is ignorant of the identity of a defendant to file a complaint before the action is barred by the statute of limitations. . . . Under section 474 a plaintiff is considered to be ‘ignorant of the name’ of a defendant not only when he lacks knowledge of the defendant’s identity but also when he knew the identity of the person but was ignorant of the facts giving him a cause of action against the person.” (Joslin v. H.A.S. Ins. Brokerage (1986) 184 Cal.App.3d 369, 376.)

Here,

Defendant argues that Plaintiffs’ claims are time-barred because Plaintiffs knew of his identity at the time the initial complaint was filed. For support, Defendant points to deposition testimony from various Plaintiffs in the case. Defendant argues that Plaintiffs’ various admissions during their depositions show that they had knowledge of his identity when the complaint was filed and, therefore, the claims against him do not relate back to the date the original complaint was filed.

The

Court declines to consider Defendant’s extrinsic evidence on demurrer. The Court is limited to the contents of the complaint and any judicially noticeable documents when ruling on a demurrer. General demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc. §§ 430.30, 430.70; Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The truth of the contents of the deposition testimony are not subject to judicial notice and the Court cannot rely on them to resolve disputed factual issues regarding Plaintiffs’ knowledge.

When

only viewing the pleading itself, the SAC does not show that the statute of limitations bars Plaintiffs’ claims against Defendant. A demurrer should be sustained where “the complaint shows on its face that the statute [of limitations] bars the action.” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) The SAC alleges that Barry Shy “was an individual who controlled Plaintiffs’ wages, hours, and working conditions.”

(SAC, ¶ 2.) It alleges "Plaintiffs did not receive any wages for hours worked at the personal residence of B-SHY from B-SHY but received all compensation from HR Management, LLC." (Id., ¶ 4.) The face of the SAC does not demonstrate that Plaintiffs had knowledge of Barry's identity at the time the complaint was filed, which would bar their claims.

Disposition

Defendant

Barry Shy's demurrer is overruled. Defendant Barry Shy is ordered to file his responsive pleading within 21 days.